

ALITO, J., dissenting

tion of Sexual Orientation in the Clearance Process 2 (GAO/NSIAD-95-21, 1995). See, e.g., *Anonymous v. Macy*, 398 F.2d 317, 318 (CA5 1968) (affirming dismissal of postal employee for homosexual acts).

In 1964, individuals who were known to be homosexual could not obtain security clearances, and any who possessed clearances were likely to lose them if their orientation was discovered. A 1953 Executive Order provided that background investigations should look for evidence of “sexual perversion,” as well as “[a]ny criminal, infamous, dishonest, immoral, or notoriously disgraceful conduct.” Exec. Order No. 10450, § 8(a)(1)(iii), 3 CFR 938 (1949-1953 Comp.). “Until about 1991, when agencies began to change their security policies and practices regarding sexual orientation, there were a number of documented cases where defense civilian or contractor employees’ security clearances were denied or revoked because of their sexual orientation.” GAO, *Security Clearances*, at 2. See, e.g., *Adams v. Laird*, 420 F.2d 230, 240 (CA5 1969) (upholding denial of security clearance to defense contractor employee because he had “engaged in repeated homosexual acts”); see also *Webster v. Doe*, 486 U.S. 592, 595, 601 (1988) (concluding that decision to fire a particular individual because he was homosexual fell within the “discretion” of the Director of Central Intelligence under the National Security Act of 1947 and thus was unreviewable under the APA).

The picture in state employment was similar. In 1964, it was common for States to bar homosexuals from serving as teachers. An article summarizing the situation *15 years after Title VII became law* reported that “[a]ll states have statutes that permit the revocation of teaching certificates (or credentials) for immorality, moral turpitude, or unprofessionalism,” and, the survey added, “[h]omosexuality is considered to fall within all three categories.”²⁵

²⁵ Rivera, *Our Straight-Laced Judges: The Legal Position of Homosexual Persons in the United States*, 30 *Hastings L. J.* 799, 861 (1979).